

Court No. - 5

Case :- WRIT - C No. - 40986 of 2017

Petitioner :- Gulzar Ahmad

Respondent :- Electricity Ombudsman And 2 Others

Counsel for Petitioner :- Subhash Gosain, Mohd Ahmad Ansari

Counsel for Respondent :- Mahboob Ahmad

Hon'ble Mahesh Chandra Tripathi, J.

Gulzar Ahmad is before this Court assailing the order dated 26.4.2017 passed by first respondent and as a consequence the electricity bill dated July, 2017 raising demand of Rs.3,39,275/-.

The petitioner has challenged the impugned order on the ground that the first respondent failed to consider that the electricity connection of the petitioner remained disconnected from 15.08.2010 to 18.09.2015 and therefore the consumer/petitioner had no liability to make payment for the said period. The respondents have made excessive electricity bill and as such the same is not sustainable. It is also contended that the demand of electricity charges was also made in violation of Clause 6.2 of the Uttar Pradesh Electricity Supply Code, 2005.

On the other hand, Shri Mahboob Ahmad, learned counsel for the respondents has vehemently opposed the writ petition and submitted that the impugned order has been passed strictly in accordance with law and there is no infirmity in it. The petitioner has two storey building and inspite of connection being taken in the year 2000 he had only deposited Rs.25,000/- till today. The petitioner was also caught in theft of electricity and as such this Court should not come for rescue and reprieve of the petitioner.

The Court has proceeded to examine the record in question and find that various disputed facts have been raised in the writ petition, which cannot be adjudicated by this Court under Art.226 of the Constitution of India. Moreover the petitioner has also not deposited the electricity bill properly. He was also caught in theft of electricity. The authorities have proceeded strictly as per law and as such the Court does not find any infirmity or illegality in the impugned order.

In view of above, the Court does not find any good ground to interfere in the matter. The writ petition sans merit and is accordingly **dismissed**.

Order Date :- 6.9.2017

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